



CHAPTER cci.

An Act for rendering valid certain letters patent granted to William Phillips Thompson in respect of inventions communicated to him from abroad by Frederic Ellsworth Kip (1) for improvements in stop-motions for looms warping machines and the like and (2) for improvements in electrical stop-motions for warps. A.D. 1903.

[11th August 1903.]

WHEREAS by letters patent (in this Act called “Kip’s first patent”) under the seal of the Patent Office bearing date the twenty-eighth day of October one thousand eight hundred and ninety-eight being the sixty-second year of the reign of Her late Majesty Queen Victoria and numbered 22703 Her late Majesty did give and grant unto William Phillips Thompson of the agency for foreign patent solicitors 6 Lord Street Liverpool and 6 Bank Street Manchester both in the county of Lancaster 118 New Street Birmingham in the county of Warwick and 322 High Holborn in the county of Middlesex civil engineer his executors administrators and assigns (therein referred to as “the said patentee”) Her especial licence full power sole privilege and authority that the said patentee by himself his agents or licensees and no others might at all times thereafter during the term of fourteen years from the date of the said letters patent make use exercise and vend within the United Kingdom of Great Britain and Ireland and Isle of Man an invention therein mentioned for “improvements in stop-motions for looms warping machines and the like” communicated to the said William Phillips Thompson from abroad by Frederic Ellsworth Kip of Montclair in the county of Essex in the State of New Jersey United States of America manufacturer :

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And whereas by letters patent (in this Act called “Kip’s second patent”) under the seal of the Patent Office bearing date the seventeenth day of November one thousand eight hundred and ninety-eight being the sixty-second year of the reign of Her late Majesty Queen Victoria and numbered 24277 Her late Majesty did give and grant unto the said William Phillips Thompson his executors administrators and assigns (therein referred to as “the said patentee”) Her especial licence full power sole privilege and authority that the said patentee by himself his agents or licensees and no others might at all times thereafter during the term of fourteen years from the date of the said letters patent make use exercise and vend within the United Kingdom of Great Britain and Ireland and Isle of Man an invention therein mentioned for “improvements in electrical stop-motions for warps” communicated to the said William Phillips Thompson from abroad by the said Frederic Ellsworth Kip :

And whereas the said Frederic Ellsworth Kip was at the date of the said letters patent and has since that date continued to be the person solely entitled to the beneficial interest of and in the said letters patent :

And whereas by an indenture dated the thirteenth day of May one thousand nine hundred and two and made between the said William Phillips Thompson of the first part and the said Frederic Ellsworth Kip of the second part and duly registered in the Patent Office on the fourteenth day of May one thousand nine hundred and two after reciting that the said letters patent were applied for and obtained and were then held by the said William Phillips Thompson on behalf of and as trustee for the said Frederic Ellsworth Kip the said William Phillips Thompson thereby assigned (inter alia) the said letters patent unto the said Frederic Ellsworth Kip for his sole use and benefit :

And whereas the said letters patent respectively contain a proviso making void the said letters patent if the said William Phillips Thompson his executors administrators and assigns should not pay all fees by law required to be paid in respect of the grant of the said letters patent or in respect of any matter relating thereto at the time or times and in manner for the time being by law provided :

And whereas by section 24 of the Patents Designs and Trade Marks Act 1883 the prescribed duty or renewal fees in respect of the said letters patent are payable by ten annual payments which vary in amount spread over a period of thirteen years from the date of the grant of the said letters patent :

And whereas the first of the renewal fees on the said letters patent became due on the following dates (namely) As regards Kip's first patent on the twenty-eighth day of October one thousand nine hundred and two and as regards Kip's second patent on the seventeenth day of November one thousand nine hundred and two :

And whereas the said Frederic Ellsworth Kip prior to the same becoming due and payable paid or caused to be paid to Henry Connett of Vanderbilt Building New York in the United States of America a patent solicitor and the agent for the said Frederic Ellsworth Kip in taking out the said letters patent in the name of the said William Phillips Thompson and in paying the renewal fees in respect thereof for the purpose of being paid over to the Comptroller-General of Patents Designs and Trade Marks (hereinafter called "the Comptroller") the prescribed duties or renewal fees in respect of the said letters patent respectively but the said Henry Connett omitted to pay the said prescribed duties or renewal fees to the Comptroller by reason of the sudden and serious illness of a clerk to the said Henry Connett to whom the duty of paying the said prescribed duties or renewal fees had been entrusted and the said letters patent were announced in the Official Journal published under the provisions of section 40 of the Patents Designs and Trade Marks Act 1883 to have become void on the following dates (namely) As regards Kip's first patent on the twenty-eighth day of October one thousand nine hundred and two and as regards Kip's second patent on the seventeenth day of November one thousand nine hundred and two :

And whereas the said Frederic Ellsworth Kip discovered the omission by the said Henry Connett to pay the said prescribed duties or renewal fees to the Comptroller on the twenty-seventh day of February one thousand nine hundred and three :

And whereas the time prescribed by section 17 of the Patents Designs and Trade Marks Act 1883 during which the Comptroller is empowered to enlarge the time for such payments had expired on the following dates (namely) As regards Kip's first patent on the twenty-eighth day of January one thousand nine hundred and three and as regards Kip's second patent on the seventeenth day of February one thousand nine hundred and three :

And whereas the said Frederic Ellsworth Kip on becoming aware of the circumstances and of the non-payment of the renewal fees by his agent the said Henry Connett gave the requisite instructions for an application to Parliament for power to pay the said prescribed duties or renewal fees and to renew the said letters patent :

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And whereas much time has been devoted and considerable sums of money have been expended by the said Frederic Ellsworth Kip in developing his inventions for which no adequate and sufficient return has hitherto been received :

And whereas the omission to pay the said prescribed duties or renewal fees or to apply to the Comptroller within the prescribed period for an enlargement of the time for paying the same arose through the sudden and serious illness of a clerk to the said Henry Connett as aforesaid which sufficiently accounts for the said omission otherwise than by neglect inadvertence or mistake :

And whereas the said prescribed duties or renewal fees have now in each of the aforesaid cases been paid and the total amount of fees (including the prescribed fees for enlargement) due and to become due upon the said letters patent respectively have been deposited with the Comptroller and the certificates of the Comptroller to that effect have been lodged in the Office of the Clerk of the Parliaments :

And whereas it is expedient that the said letters patent respectively should be rendered valid in manner hereinafter mentioned :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Letters
patent con-
firmed.

1. Upon the passing of this Act the said letters patent respectively (a true copy of each of which is set forth in the Schedule to this Act annexed) or a duplicate thereof certified by the Comptroller for the purposes of this Act shall be considered deemed and taken to be and to have been as good valid and effectual to all intents and purposes as if all the payments prescribed by the Patents Designs and Trade Marks Act 1883 to be made in respect of the said letters patent respectively either before or after the passing of this Act had been duly made or satisfied.

Saving
rights.

2. No action or other proceeding shall be commenced or prosecuted nor any damage recovered—

(1) In respect of any infringement of the said letters patent respectively which shall have taken place after the eleventh day of February one thousand nine hundred and three and the fourth day of March one thousand nine hundred and

three respectively (the days on which the letters patent were respectively announced to be void in the Official Journal) and before the passing of this Act :

- (2) In respect of the use or employment at any time hereafter of any machine machinery process or operation actually made or carried on within the British Islands or of the use or sale of any article manufactured or made in infringement of the said letters patent respectively after the said eleventh day of February one thousand nine hundred and three and the fourth day of March one thousand nine hundred and three respectively and before the passing of this Act Provided that such use sale or employment is by the person or corporation by or for whom such machine or machinery or article was bonâ fide manufactured or made or such process or operation was bonâ fide carried on his or their executors administrators successors or vendees or his or their assigns respectively :
- (3) In respect of the use employment or sale at any time hereafter by any person or corporation entitled for the time being under the preceding subsection to use or employ any machine machinery process or operation or any improved or additional machine or machinery or any improved extended or developed process or operation or of any article manufactured or made by any of the means aforesaid in infringement of the said letters patent respectively Provided that the use or employment of any such improved or additional machine or machinery or of any such improved extended or developed process or operation shall be limited to the buildings works or premises of the person or corporation by or for whom such machine or machinery was manufactured or such process or operation was carried on within the meaning of the preceding subsection his or their executors administrators successors or assigns.

If any person shall within one year after the passing of this Act make an application to the Board of Trade for compensation in respect of money time or labour expended by the applicant upon the subject matter of the said letters patent respectively in the bonâ fide belief that such letters patent respectively or any or either of them had become and continued to be void it shall be lawful for the said Board after hearing the parties concerned or their agents to assess the amount of such compensation if in their opinion the application ought to be granted and to specify the

A.D. 1903. — party by whom and the day on which such compensation shall be paid and if default shall be made in payment of the sum awarded then the said letters patent respectively shall by virtue of this Act become void but the sum awarded shall not in that case be recoverable as a debt or damages.

Short title. **3.** This Act may be cited as Kip's Patents Act 1903.

1898 No. 22703.

VICTORIA BY THE GRACE OF GOD of the United Kingdom of Great Britain and Ireland Queen Defender of the Faith To all to whom these presents shall come Greeting :

WHEREAS William Phillips Thompson F.C.S. M.I.M.E. of the agency for foreign patent solicitors 6 Lord Street Liverpool and 6 Bank Street Manchester both in the county of Lancaster 118 New Street Birmingham in the county of Warwick and 322 High Holborn in the county of Middlesex civil engineer hath represented unto us that he is in possession of an invention for improvements in stop-motions for looms warping machines and the like that the said invention has been communicated to him from abroad by Frederic Ellsworth Kip of Montclair in the county of Essex in the state of New Jersey United States of America manufacturer and that the same is not in use by any other person to the best of his knowledge and belief :

And whereas the said declarant hath humbly prayed that We would be graciously pleased to grant unto him (hereinafter together with his executors administrators and assigns or any of them referred to as the said patentee) our Royal Letters Patent for the sole use and advantage of his said invention :

And whereas the said declarant hath by and in his complete specification particularly described the nature of the said invention :

And whereas We being willing to encourage all inventions which may be for the public good are graciously pleased to condescend to his request :

Know ye therefore that We of our especial grace certain knowledge and mere motion do by these presents for us our heirs and successors give and grant unto the said patentee our especial licence full power sole privilege and authority that the said patentee by himself his agents or licensees and no others may at all times hereafter during the term of years herein mentioned make use exercise and vend the said invention within our United Kingdom of Great Britain and Ireland and Isle of Man in such manner as to him or them may seem meet and that the said patentee shall have and enjoy the whole profit and advantage from time to time accruing by reason of the said invention during the term of fourteen years from the date hereunder written of these presents And to the end that the said patentee may have and enjoy the sole use and exercise and the full benefit of the said invention We do by these presents for us our heirs and successors strictly command all our subjects whatsoever within our United Kingdom of Great Britain and Ireland and the Isle of Man that they do not at any time during the continuance of the said

A.D. 1903. — term of fourteen years either directly or indirectly make use of or put in practice the said invention or any part of the same nor in anywise imitate the same nor make or cause to be made any addition thereto or subtraction therefrom whereby to pretend themselves the inventors thereof without the consent licence or agreement of the said patentee in writing under his hand and seal on pain of incurring such penalties as may be justly inflicted on such offenders for their contempt of this our Royal command and of being answerable to the patentee according to law for his damages thereby occasioned :

Provided that these our letters patent are on this condition that if at any time during the said term it be made to appear to us our heirs or successors or any six or more of our Privy Council that this our grant is contrary to law or prejudicial or inconvenient to our subjects in general or that the said invention is not a new invention as to the public use and exercise thereof within our United Kingdom of Great Britain and Ireland and Isle of Man or that the said declarant was not the first and true inventor thereof within this realm as aforesaid these our letters patent shall forthwith determine and be void to all intents and purposes notwithstanding anything hereinbefore contained Provided also that if the said patentee shall not pay all fees by law required to be paid in respect of the grant of these letters patent or in respect of any matter relating thereto at the time or times and in manner for the time being by law provided and also if the said patentee shall not supply or cause to be supplied for our service all such articles of the said invention as may be required by the officers or commissioners administering any department of our service in such manner at such times and at and upon such reasonable prices and terms as shall be settled in manner for the time being by law provided then and in any of the said cases these our letters patent and all privileges and advantages whatever hereby granted shall determine and become void notwithstanding anything hereinbefore contained Provided also that nothing herein contained shall prevent the granting of licences in such manner and for such considerations as they may by law be granted And lastly We do by these presents for us our heirs and successors grant unto the said patentee that these our letters patent shall be construed in the most beneficial sense for the advantage of the said patentee.

In witness whereof We have caused these our letters to be made patent this twenty-eighth day of October one thousand eight hundred and ninety-eight and to be sealed as of the twenty-eighth day of October one thousand eight hundred and ninety-eight.

C. N. DALTON
Comptroller-General of Patents.



The Seal
of the
Patent Office.

1898 No. 24277.

A.D. 1903.

VICTORIA BY THE GRACE OF GOD of the United Kingdom of Great Britain and Ireland Queen Defender of the Faith To all to whom these presents shall come Greeting :

WHEREAS William Phillips Thompson F.C.S. M.I.M.E. of the agency for foreign patent solicitors 6 Lord Street Liverpool and 6 Bank Street Manchester both in the county of Lancaster 118 New Street Birmingham in the county of Warwick and 322 High Holborn in the county of Middlesex civil engineer hath represented unto us that he is in possession of an invention for improvements in electrical stop-motions for warps that the said invention has been communicated to him from abroad by Frederic Ellsworth Kip of Montclair in the county of Essex in the state of New Jersey United States of America manufacturer and that the same is not in use by any other person to the best of his knowledge and belief :

And whereas the said declarant hath humbly prayed that We would be graciously pleased to grant unto him (hereinafter together with his executors administrators and assigns or any of them referred to as the said patentee) our Royal Letters Patent for the sole use and advantage of his said invention :

And whereas the said declarant hath by and in his complete specification particularly described the nature of the said invention :

And whereas We being willing to encourage all inventions which may be for the public good are graciously pleased to condescend to his request

Know ye therefore that We of our especial grace certain knowledge and mere motion do by these presents for us our heirs and successors give and grant unto the said patentee our especial licence full power sole privilege and authority that the said patentee by himself his agents or licensees and no others may at all times hereafter during the term of years herein mentioned make use exercise and vend the said invention within our United Kingdom of Great Britain and Ireland and Isle of Man in such manner as to him or them may seem meet and that the said patentee shall have and enjoy the whole profit and advantage from time to time accruing by reason of the said invention during the term of fourteen years from the date hereunder written of these presents And to the end that the said patentee may have and enjoy the sole use and exercise and the full benefit of the said invention We do by these presents for us our heirs and successors strictly command all our subjects whatsoever within our United Kingdom of Great Britain and Ireland and the Isle of Man that they do not at any time during the continuance of the said term of fourteen years either directly or indirectly make use of or put in practice the said invention or any part of the same nor in anywise imitate the same nor make or cause to be made any addition thereto or subtraction therefrom whereby to pretend themselves the inventors thereof without the consent licence or agreement of the said patentee in writing under his hand and seal on pain of incurring such penalties as may be justly inflicted on such offenders for their contempt of this our Royal command and of being answerable to the patentee according to law for his damages thereby occasioned :

A.D. 1903.
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Provided that these our letters patent are on this condition that if at any time during the said term it be made to appear to us our heirs or successors or any six or more of our Privy Council that this our grant is contrary to law or prejudicial or inconvenient to our subjects in general or that the said invention is not a new invention as to the public use and exercise thereof within our United Kingdom of Great Britain and Ireland and Isle of Man or that the said declarant was not the first and true inventor thereof within this realm as aforesaid these our letters patent shall forthwith determine and be void to all intents and purposes notwithstanding anything hereinbefore contained. Provided also that if the said patentee shall not pay all fees by law required to be paid in respect of the grant of these letters patent or in respect of any matter relating thereto at the time or times and in manner for the time being by law provided and also if the said patentee shall not supply or cause to be supplied for our service all such articles of the said invention as may be required by the officers or commissioners administering any department of our service in such manner at such times and at and upon such reasonable prices and terms as shall be settled in manner for the time being by law provided then and in any of the said cases these our letters patent and all privileges and advantages whatever hereby granted shall determine and become void notwithstanding anything hereinbefore contained. Provided also that nothing herein contained shall prevent the granting of licences in such manner and for such considerations as they may by law be granted. And lastly We do by these presents for us our heirs and successors grant unto the said patentee that these our letters patent shall be construed in the most beneficial sense for the advantage of the said patentee.

In witness whereof We have caused these our letters to be made patent this seventeenth day of November one thousand eight hundred and ninety-eight and to be sealed as of the seventeenth day of November one thousand eight hundred and ninety-eight.

C. N. DALTON

Comptroller-General of Patents.



The Seal
of the
Patent Office.

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